

**JUSTICE N. SANTOSH HEGDE NATIONAL MOOT COURT
COMPETITION, 2024**

IN THE HON'BLE SUPREME COURT OF NAHIRA

SPECIAL LEAVE PETITION No. _/ 2024

(UNDER ARTICLE 136 OF THE CONSTITUTION OF NAHIRA)

IN THE MATTER OF

SOTHER BOLAM AND ORS.(APPELLANT)

V.

UNION OF NAHIRA.....(RESPONDENT)

c/w

PUBLIC INTEREST LITIGATION No. _/2024

(UNDER ARTICLE 32 OF THE CONSTITUTION OF NAHIRA)

IN THE MATTER OF

QUANKAR BOLAM.....(PETITIONER)

V.

UNION OF NAHIRA.....(RESPONDENT)

WRITTEN SUBMISSIONS ON BEHALF OF THE RESPONDENT

TABLE OF CONTENTS

TABLE OF CONTENTS	1
LIST OF ABBREVIATIONS	3
INDEX OF AUTHORITIES.....	4
STATEMENT OF JURISDICTION.....	7
SUMMARY OF FACTS.....	8
STATEMENT OF ISSUES	9
SUMMARY OF ARGUMENTS.....	10
ARGUMENTS ADVANCED.....	12
ISSUE 1. THE HIGH COURT ORDER IS NOT BAD IN LAW.....	12
1.1. <i>THE APPEAL FILED BEFORE THIS HON'BLE SUPREME COURT UNDER ARTICLE 136 IS NOT MAINTAINABLE.....</i>	12
1.2. <i>THE WRIT IN THE HIGH COURT WAS NOT MAINTAINABLE AGAINST CATCHER PVT. LTD.</i>	13
1.3. <i>THE NATIONAL WRESTLING BOARD WAS ACTING WITHIN ITS POWERS.</i>	14
1.4. <i>CREATION OF THE ANTI-DOPING ARTIFICIAL INTELLIGENCE.</i>	15
1.5. <i>THE NATIONAL WRESTLING BOARD, HAVING ACTED WITHIN ITS POWERS, HAS NOT VIOLATED THE PRINCIPLES OF EQUALITY.</i>	16
1.5.1. <i>Target Testing Can be Carried Out.</i>	17
1.5.2. <i>Provisions For Weighted Random Testing Exist.</i>	17
1.6. <i>THE SYSTEM COMPLIES WITH THE WORLD ANTI-DOPING AGENCY INTELLIGENCE GUIDELINES.</i>	18
1.7. <i>THE SELECTION SYSTEM COMPLIES WITH THE WORLD ANTI-DOPING AGENCY CODE AND ARTICLE 14.....</i>	18
1.8. <i>THE ARTIFICIAL INTELLIGENCE IS NOT DESIGNED TO DISCRIMINATE.</i>	20
ISSUE 2. THE FUNDAMENTAL RIGHTS HAVE NOT BEEN VIOLATED.....	22
2.1. <i>THE PUBLIC INTEREST LITIGATION FILED BEFORE THIS HON'BLE SUPREME COURT UNDER ARTICLE 32 IS NOT MAINTAINABLE.....</i>	22
2.2. <i>NATIONAL WRESTLING BOARD CANNOT BE A PARTY TO THE. PROCEEDINGS.</i>	23
2.3. <i>THE LIFETIME SUSPENSION OF THE ATHLETES DOES NOT VIOLATE THE DUE PROCESS AS GUARANTEED BY ARTICLE 21 OF THE CONSTITUTION.</i>	23

2.4. NO RIGHT TO PRIVACY HAS BEEN VIOLATED.....	25
2.5. THE TARGETING OF THE BOLAM COMMUNITY BY THE ARTIFICIAL INTELLIGENCE EMPLOYED BY THE NATIONAL WRESTLING BOARD DOES NOT VIOLATE THE PRINCIPLES OF EQUALITY.	28
2.6. THE FUNDAMENTAL RIGHTS AS GUARANTEED UNDER 19(1)(G) HAS NOT BEEN VIOLATED.	30
PRAYER.....	32

LIST OF ABBREVIATIONS

&	And
A.I.R.	All India Report
AI	Artificial Intelligence
Art.	Article
CONST.	Constitution
Del	Delhi
DPDPA	Digital Personal Data Protection Act
Hon'ble	Honourable
i.e	That is
Id.	Ibidem
Kar	Karnataka
NADA	National Anti-Doping Authority
NWB	National Wrestling Board
S.C.	Supreme Court
S.C.C.	Supreme Court Cases
S.C.J.	Supreme Court Journal
S.C.R.	Supreme Court Reporters
UOI	Union of India
v.	Versus
WADA	World Anti-Doping Agency

INDEX OF AUTHORITIES

CASES

1. Andhra Industrial Works v. Chief Controller of Imports, (1974) 2 SCC 348 : AIR 1974 SC 1539 -----	21
2. Andi Mukta Sadguru Shree Muktajee Vandas Swami Suvarna Jayanti Mahotsav Smarak Trust v. V.R. Rudani, (1989) 2 SCC 691 -----	12
3. Avtar Singh v. Union of India, (1992) 24 DRJ 141 -----	12
4. Balwant Singh v. State of Bihar, 2007 SCC OnLine Pat 438-----	24
5. Bhagwan Singh vs. Deputy Commissioner Sitapur, AIR 1962 All 232-----	24
6. C.I.T. Bombay v. Mahindra, AIR 1984 SC 1182-----	28
7. Chingleput Bottlers v. Majestic Bottling Co, AIR 1984 SC 1030.-----	28
8. Chiranjit Lal v. Union of India, 1950 SCR 869-----	28
9. D.C. Mills v. Commissioner of Income Tax, West Bengal, AIR 1955 SC 55 -----	12
10. Deepti Kapur v. Kunal Julka, 2020 SCC OnLine Del 672 -----	24
11. Dhakeswari Cotton Mills Limited v CIT, AIR 1989 SC 1298: (1989) 2 SCC 303. --	11
12. E.P. Royappa V State of Tamil Nadu, AIR 1974 SC 555 -----	27
13. Federation of Bar Association in Karnataka v. Union of India, (2000) 6 SCC 715.--	21
14. Gopal Das Mohta v. Union of India, AIR 1955 SC 1-----	21
15. In Re Special courts Bill, AIR 1979 SC 478. -----	28
16. Janet Jeyapaul v. SRM University, (2015) 16 SCC 530-----	12
17. JK Industries Ltd v. Chief Inspector of Factories, 1996 6 SCC 665 -----	30
18. K.S. Puttaswamy and Anr. vs. Union of India ((2017) 10 SCC 1-----	18, 19, 20, 24
19. Kaushal Kishor v. State of U.P., (2023) 4 SCC 1 -----	13
20. Kedar Nath v. State of WB, 1954 SCR 30 -----	28
21. Krishnan Kakkanth v. Government of Kerala, 1996 SCC OnLine Ker 4 -----	30
22. Magan Bhai v. Union of India, (1970) 3 SCC 400 -----	21
23. Maneka Gandhi v. Union of India, AIR 1978 SC 597. -----	22
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25. Municipal Corpn. of the City of Ahmedabad v. Jan Mohd. Usmanbhai, (1986) 3 SCC 2 -----	30
26. My Palace Mutually Aided Cooperative Society Vs. B. Mahesh & Ors., (2022) SCC OnLine SC 1063. -----	11

27. Nagar Rice milling v. Teekappa, AIR 1971 SC 246 -----	29
28. P.Nalla Thampy terah v. Union of India, 1985 Supp SCC 189-----	28
29. Pooran Mal v. Director of Inspection, Income Tax, 1974 SCC (1) 345-----	24
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31. Pritam Singh v. State, AIR 1950 SC 169. -----	12
32. R.M. Malkani v. State of Maharashtra, (1973) 1 SCC 471.-----	24
33. Ramchand v. Union of India, AIR 1963 SC 563 -----	30
34. State of West Bengal v. Anwar Ali Sarkar, AIR 1952 SC 75 -----	18, 28
35. Taracharan V. Das Gupta, AIR 1954 Cal 138 -----	29
36. State of Jharkhand v. Shiv Shankar Sharma, 2022 SCC OnLine SC 1541.-----	21
37. V.N. Krishna Murthy v. Ravikumar, (2020) 9 SCC 501 -----	11
38. Zee Telefilms v. Union of India, (2005) 4 SCC 649 -----	22

STATUTES

39. Constitution of Nahira-----	passim
40. NADA Anti-Doping Rules -----	17, 23, 25
41. National Sports Code, 2011. -----	13, 14
42. WADA Code International Standard Testing and Investigations, 2023-----	15, 16, 17
43. World Anti- Doping Code, 2021 -----	14, 23

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STATEMENT OF JURISDICTION

The Petitioners have approached the Hon'ble Supreme Court of Nahira under *Article 136* as an appeal and under *Article 32* of the Constitution of Nahira as a Public Interest Litigation. However, Respondents respectfully reserve the right to challenge the jurisdiction of the Hon'ble Supreme Court in the present matter.

The Article 136 of the Constitution of Nahira reads as hereunder:

“136. SPECIAL LEAVE TO APPEAL BY THE SUPREME COURT

(1) Notwithstanding Anything In This Chapter, The Supreme Court May, In Its Discretion, Grant Special Leave To Appeal From Any Judgment, Decree, Determination, Sentence Or Order In Any Cause Or Matter Passed Or Made By Any Court Or Tribunal In The Territory Of India.

(2) Nothing In Clause (1) Shall Apply To Any Judgment, Determination, Sentence Or Order Passed Or Made By Any Court Or Tribunal Constituted By Or Under Any Law Relating To The Armed Forces.”

The Article 32 of the Constitution of Nahira reads as hereunder:

“32. REMEDIES FOR ENFORCEMENT OF RIGHTS CONFERRED BY THIS PART.

(1) The right to move the Supreme Court by appropriate proceedings for the enforcement of the rights conferred by this Part is guaranteed.

(2) The Supreme Court shall have power to issue directions or orders or writs, including writs in the nature of habeas corpus, mandamus, prohibition, quo warranto and certiorari, whichever may be appropriate, for the enforcement of any of the rights conferred by this Part.

(3) Without prejudice to the powers conferred on the Supreme Court by clauses (1) and (2), Parliament may by law empower any other court to exercise within the local limits of its jurisdiction all or any of the powers exercisable by the Supreme Court under clause (2).

(4) The right guaranteed by this article shall not be suspended except as otherwise provided for by this Constitution.”

SUMMARY OF FACTS

I. BACKGROUND

The state of Nahira is an island country with a population of ten billion. Out of all the ethnic groups Naku community has the highest population (65%), followed by Bolam (15%). The Bolam community is primarily associated with fishing due to its traditional occupation and struggles with poverty and limited educational opportunities.

II. COMMITMENT ONLY TO BOLAM COMMUNITY

Mr. Quankar Bolam, a renowned wrestler from the Bolam community, attained global acclaim in wrestling competitions before retiring in 2005. Following his retirement, he devoted himself solely to coaching and training young Bolam wrestlers. Mr. Haruki Naku, a Naku wrestler, sought Mr. Quankar's mentorship which he declined. Mr. Quankar Bolam, despite being offered the prestigious position of coaching the national wrestling team by Mr. Pinau Naku, chairman of the National Wrestling Board (NWB), chose to prioritize his dedication to nurturing sports talent within the Bolam community.

III. ALLEGATIONS AND INVESTIGATION

In 2015, during Nahira's national games, three Bolam community athletes, including proteges of Mr. Quankar Bolam, were accused of doping. Concurrently, the Narcotics Control Bureau (NCB) investigated Mr. Quankar for drug peddling, raiding his premises and confiscating electronic devices. Leaked WhatsApp messages allegedly showed Mr. Quankar's bias against Naku athletes and suggested Bolam wrestlers visit a specific doctor. Subsequently, media reports spotlighted a rise in Bolam community crime rates.

IV. STRINGENT DRUG TESTING MEASURES BY NWB

The National Wrestling Board (NWB) enforced stringent consequences for doping violations. The wrestlers argued that the substance they consumed, 'Batavari Srahmi Ras,' was a customary practice with no performance-enhancing effects. The newly elected NWB president aimed to implement a state-of-the-art drug testing program in collaboration with Catcher Pvt Ltd., utilizing AI algorithms for enhanced detection.

V. LEGAL BATTLE

Critics contended that increased scrutiny perpetuated stereotypes and undermined equality. A writ petition was filed against Catcher Pvt. Ltd. and NWB, but the High Court dismissed the claims. Sother Bolan, Ether Bolan, and Nover Bolan, along with Mr Quankar, approached the Supreme Court of Nahira, challenging the High Court's decision and alleging violations of the fundamental rights of Bolam community athletes which were agreed to hear together by SC.

STATEMENT OF ISSUES

ISSUE I

THE HIGH COURT ORDER IS NOT BAD IN LAW.

ISSUE II

THE FUNDAMENTAL RIGHTS HAVE NOT BEEN VIOLATED.

SUMMARY OF ARGUMENTS

ISSUE I

THE HIGH COURT ORDER IS NOT BAD IN LAW.

1. The Respondent submits that the appeal before this Hon'ble Supreme Court under Article 136 is not maintainable as the appellants lack standing to challenge the High Court's dismissal order. Even if standing were established, the appellants failed to exhaust alternative remedies, such as filing a revision petition with the High Court under Article 226 of the Constitution. Moreover, invoking Article 136 requires exceptional circumstances, which are absent in this case, as no miscarriage of justice or violation of legal rights has occurred. Catcher Pvt. Ltd.
2. The Respondent contends that the High Court's order is legally sound as Catcher Pvt. Ltd., not being a public authority, is not amenable to writ jurisdiction. Furthermore, the National Wrestling Board (NWB) acted within its powers in introducing AI for doping control, as sanctioned by the National Sports Code 2011. The genesis of the AI system involved meticulous research and collaboration, ensuring compliance with WADA guidelines. The AI's purpose is to augment existing detection methods, not discriminate against athletes, and adhere to WADA's intelligence guidelines. The NWB's selection process, based on physiological indicators, complies with WADA standards and the principles of equality under Article 14 of the Constitution.
3. The AI, designed with unaltered datasets and adherence to counterfactual fairness, does not exhibit algorithmic bias. Its purpose is to detect signs of drug abuse impartially, thus safeguarding the integrity of sports. In conclusion, the NWB's implementation of AI for doping control serves the larger public interest, ensuring fairness and ethical standards in sports without infringing on athletes' rights.

ISSUE II

THE FUNDAMENTAL RIGHTS HAVE NOT BEEN VIOLATED.

1. The Respondent submits that the Public Interest Litigation (PIL) filed before the Hon'ble Supreme Court under Article 32 of the Constitution is not maintainable as there has been no violation of Fundamental Rights. Article 32 proceedings are exclusively reserved for matters pertaining to Fundamental Rights, and since there is no infringement or threat to Fundamental Rights in this case, invoking jurisdiction under Article 32 would be untenable.
2. The Respondent contends that the fundamental rights have not been violated, asserting that the National Wrestling Board (NWB) cannot be a party to the proceedings due to its autonomous status. Regarding the lifetime suspension of athletes, it is argued that due process has been meticulously followed, with clear violations of anti-doping rules warranting the imposed sanctions.
3. The Respondent contends that no right to privacy has been violated, as the actions of the NWB are lawful and necessary to combat doping in sports. The use of Artificial Intelligence (AI) technology is sanctioned by NADA and WADA, and measures have been taken to ensure data privacy and security. Regarding the targeting of the Bolam community by the AI, the Respondent argues that such allegations are unfounded and lack merit. The AI operates based on factual data and is not autonomously discriminatory. Any increased scrutiny of the Bolam community would be justified by their higher likelihood of doping based on factual data.
4. Additionally, the targeting of the Bolam community by the AI is deemed justified as a means of combating doping practices. Moreover, the Respondent refutes allegations of violating Article 19(1)(g), asserting the necessity of regulation in the interest of public morality and the improvement of sports standards. Overall, the Respondent maintains that the actions taken are lawful and justified, and serve the broader interest of ensuring fairness in sports.

ARGUMENTS ADVANCED

ISSUE 1.

THE HIGH COURT ORDER IS NOT BAD IN LAW.

1.1. THE APPEAL FILED BEFORE THIS HON'BLE SUPREME COURT UNDER ARTICLE 136 IS NOT MAINTAINABLE.

1. It is humbly and most respectfully submitted that as stated in *My Palace Mutually Aided Cooperative Society Vs. B. Mahesh & Ors.* that an appeal can only be made with the leave of the court by a person affected by the judgement.¹ It is submitted that the appellants in this case are not affected by the judgement. Moreover, It has been stated by this Hon'ble Court that merely being prejudicially affected by the order is not sufficient but has to affect the legal rights of the appellants.² In the present case, no legal rights of the appellants to the High Court's dismissal order have been violated.
2. In *arguendo*, even if they were the affected party they have approached this Hon'ble Court without exhausting the alternative remedy which is to file for a revision petition with the High Court of Zahura under *Article 226*³ of the Constitution. Given that the petitioner had the opportunity to file a review petition against the High Court judgment, there is no justification for burdening the Supreme Court with additional cases where no exceptional harm is evident, thereby exacerbating the backlog.
3. This Hon'ble Court has stated that Special Leave Petition being a special power, is to be exercised only in those cases where special circumstances are shown to exist, and whenever there is an injustice done to a party in a proceeding before a court or there is a miscarriage of justice, or when a question of law of general public importance arises, or a decision shocks the conscience of the Court, this jurisdiction can always be invoked.⁴ It is submitted that there has been no miscarriage of justice and reasonable procedural adherence has indeed been followed.

¹ *My Palace Mutually Aided Cooperative Society Vs. B. Mahesh & Ors.*, (2022) SCC OnLine SC 1063.

² *V.N. Krishna Murthy v. Ravikumar*, (2020) 9 SCC 501.

³ INDIA CONST. Art. 226.

⁴ *Dhakeswari Cotton Mills Limited v CIT*, AIR 1989 SC 1298: (1989) 2 SCC 303.

4. The Court has consistently emphasized that *Article 136*⁵ should only be invoked in exceptional circumstances,⁶ addressing substantial questions of law.⁷ As established in *Avtar Singh v. Union of India*, it is crucial to recognize that a special leave petition under *Article 136* of the Constitution is a matter of discretion, not right⁸. The Respondent's counsel contends that the current petition lacks the requisite extraordinary nature and fails to raise a substantial legal issue, rendering it non-maintainable.

1.2. THE WRIT IN THE HIGH COURT WAS NOT MAINTAINABLE AGAINST CATCHER PVT. LTD.

5. It is humbly submitted that Catcher Pvt. Ltd. does not possess the requisite status as a 'state' or 'authority' within the purview of *Article 226*⁹ of the Constitution, thereby rendering it inept for enforcement under writ jurisdiction.
6. The scope of *Article 226* extends the jurisdiction of the High Court to issue directions, orders or writs to any (i) person, (ii) authority and (iii) government. The scope of the term 'authority' is confined by the nature of duty disposed by such authority. In *Janet Jeyapaul v. SRM University*,¹⁰ the Court has reiterated that *Article 226* covers any other person or body performing a public duty. The test of 'private body exercising public function' has to be satisfied to be amenable to the jurisdiction of *Article 226*.
7. In *Andi Mukta Sadguru Shree Muktajee Vandas Swami Suvarna Jayanti Mahotsav Smarak Trust*,¹¹ the court elaborated on the essence of protection enshrined within *Article 226* of the Constitution. It underscored that the crux lies in discerning the nature of the duty bestowed upon an entity falling within the purview of 'authority' under *Article 226*. This entails a meticulous evaluation of the affirmative obligations incumbent upon such bodies toward affected parties. Thus, it posits a stringent criterion, mandating the existence of a compelling 'positive obligation' on the part of the entity in question.
8. Furthermore, in *Kaushal Kishore*,¹² wherein it was stated that private entities could also fall under the ambit of *Article 226*, such power was limited to violations of articles which

⁵ INDIA CONST. Art. 136.

⁶ Pritam Singh v. State, AIR 1950 SC 169.

⁷ D.C. Mills v. Commissioner of Income Tax, West Bengal, AIR 1955 SC 55.

⁸ Avtar Singh v. Union of India, (1992) 24 DRJ 141.

⁹ INDIA CONST. Art. 226.

¹⁰ Janet Jeyapaul v. SRM University, (2015) 16 SCC 530.

¹¹ Andi Mukta Sadguru Shree Muktajee Vandas Swami Suvarna Jayanti Mahotsav Smarak Trust v. V.R. Rudani, (1989) 2 SCC 691.

¹² Kaushal Kishor v. State of U.P., (2023) 4 SCC 1.

guaranteed a horizontal right. Notably, the infringement of *Articles 19*¹³ and *21*¹⁴, manifestly delineated as horizontal rights within the constitutional framework, can be invoked against private entities undertaking public functions. This prerogative is distinctly delimited to transgressions pertaining solely to the guarantees enshrined under *Articles 19* and *21*, thereby excluding the vertical right encapsulated in *Article 14*.

9. It is submitted that Catcher Pvt. Ltd. operates as a private entity specializing in doping control and drug-testing solutions, engaged under contract with the National Wrestling Board (NWB). Its expertise lies in the development of AI algorithms tailored to enhance the efficacy of doping detection. Notably, Catcher Pvt. Ltd. maintains a strict demarcation, ensuring it has no access to the personal data of athletes or any information stored within the NWB or NADA databases. This delineation underscores Catcher Pvt. Ltd.'s exclusive focus on contractual obligations, devoid of any entanglement in public functions. Its role remains confined to the professional realm, with no direct engagement or relational ties with the athletes themselves. Consequently, the absence of any 'positive obligation' towards affected athletes is evident, as Catcher Pvt. Ltd. stands detached from individual athlete relations, thus reinforcing its contractual foundation.
10. Hence, it is submitted that an *Article 226* remedy could not be sought against Catcher Pvt Ltd and the order of the High Court was a sound legal judgement and the same must be upheld by this Hon'ble Court.

1.3. THE NATIONAL WRESTLING BOARD WAS ACTING WITHIN ITS POWERS.

11. It is submitted that the National Wrestling Board, as the primary body for regulating wrestling in the country, in furtherance of its powers, has introduced the usage of AI for Doping control.
12. It is submitted that the National Sports Code 2011 provides recognition of National Sports Federations.¹⁵ The National Sports Federations (NSFs) are entrusted with comprehensive oversight, including the pivotal responsibility for managing, directing, regulating, and promoting their respective disciplines.¹⁶ The ambit of the 'power to Regulate' assigned to the NSFs is inclusive of Anti-Doping measures.¹⁷

¹³ INDIA CONST. Art. 19.

¹⁴ INDIA CONST. Art. 21.

¹⁵ National Sports Code, 2011.

¹⁶ National Sports Code, 2011, Rule 6.1(b).

¹⁷ National Sports Code, 2011, Rule 1.3.

13. It is submitted that the NWB, empowered as the apex regulatory and disciplinary body for wrestling, is vested with the prerogative to implement regulatory frameworks aimed at enhancing the efficacy of Anti-Doping procedures.

1.4. CREATION OF THE ANTI-DOPING ARTIFICIAL INTELLIGENCE.

14. It is humbly submitted that the genesis of this complex system stemmed from a synthesis of cutting-edge research from prestigious institutions and the meticulous curation of wrestler behavioural data through state-of-the-art technological methodologies. Through rigorous compilation, comparison, and analysis, this system has meticulously crafted optimal parameter combinations, serving as discerning indicators of performance-enhancing drug due to haemodilution.¹⁸ This system stands as a refined version of the WADA AI, tailor-made for the populace of Nahira.¹⁹
15. The AI serves as merely an indispensable detection mechanism, augmenting the existing framework to fortify the integrity of sports. The AI's efficient and high-accuracy detection selects the appropriate athletes for testing. This is preceding the selection done by the Doping Control Officer following the standards as laid down by WADA.²⁰ Like the prevalent AI, the system aims to be fast (analysing multiple data simultaneously), unpredictable and self-learning.²¹ The project aims to provide a strong deterrent against doping, reducing the risk of evasion by manipulation and to be cost-effective, ensuring that anti-doping budgets are spent in an evidence-based fashion.
16. It is submitted that the AI detects the signs of drug abuse based on facial features and bodily functioning in addition to the already accepted methods of detection used by the NWB and NADA.
17. It is submitted that the first data set provided by NWB has been sourced from publicly available repositories. These repositories encompass research conducted by preeminent medical and

¹⁸ Sanchis-Gomar, F.; Martinez-Bello, V. E.; Nascimento, A. L.; Perez-Quilis, C.; Garcia-Gimenez, J. L.; Viña, J.; Gomez-Cabrera, M. C., *Desmopressin and Hemodilution: Implications in Doping*, INTERNATIONAL JOURNAL OF SPORTS MEDICINE, 31(1), 5–9 (2010).

¹⁹ AR.I.E.T.T.A. Artificial Intelligence Evoking Target Testing in Antidoping | World Anti Doping Agency, <https://www.wada-ama.org/en/resources/scientific-research/arietta-artificial-intelligence-evoking-target-testing-antidoping> (last visited Jan 10, 2024).

²⁰ World Anti- Doping Code, 2021.

²¹ AR.I.E.T.T.A. Artificial Intelligence Evoking Target Testing in Antidoping | World Anti Doping Agency, <https://www.wada-ama.org/en/resources/scientific-research/arietta-artificial-intelligence-evoking-target-testing-antidoping> (last visited Jan 10, 2024).

research institutions, wherein extensive analysis has been undertaken to discern indicators of drug usage. Notably, the investigation delves into the physiological responses or manifestations ensuing from drug administration. NWB has merely acted as a conduit, supplying existing data curated through meticulous research efforts.²²

18. Furthermore, the second set of the data pertains to the behavioural examinations conducted by NWB using AI. This data set was a cumulative effort of the AI, NWB and NADA. The AI meticulously analyzed athletes' behavioural patterns, encompassing bodily movements, responses to pain, stamina, and other physiological functions. This data was then juxtaposed with the test results of the samples NADA collected. Following the regulatory and disciplinary jurisdiction vested by the NSC, NWB has been bestowed with the responsibility of anti-doping intelligence by NADA, adhering strictly to WADA requirements for intelligence sharing and fostering an effective detection framework.²³ This system was followed religiously across wrestling competitions and practice sessions in the country until an adequate sample size was obtained.

19. Therefore, NWB has not acted *ultra vires* its powers and has created a system for the efficient detection and deterrence of Doping among Wrestlers.

1.5. THE NATIONAL WRESTLING BOARD, HAVING ACTED WITHIN ITS POWERS, HAS NOT VIOLATED THE PRINCIPLES OF EQUALITY.

20. It is humbly submitted that NADA Rules 2021 requires all testing and investigations to be carried out following the WADA International Standards for Testing and Investigations.²⁴ Notably, the protocol for athlete selection preceding sample testing is delineated within these international standards. The WADA proposes mainly three systems for selection, Namely, Target, Random and Random-Weighted Testing. All National Federations subordinate to NADA are required to adopt the most appropriate system.

21. It is contended that any system, so adopted, cannot be challenged unless it is employed by any ineligible body in non-compliance with the prescribed requirements for such a system.

²² Drug abuse in athletes - PMC, <https://www.ncbi.nlm.nih.gov/pmc/articles/PMC4140700/> (last visited Jan 11, 2024); National Institute on Drug Abuse, *Anabolic Steroids and Other Appearance and Performance Enhancing Drugs (APEDs)* | National Institute on Drug Abuse (NIDA), (--), <https://nida.nih.gov/research-topics/anabolic-steroids> (last visited Jan 11, 2024).

²³ WADA Code International Standard Testing and Investigations, 2021.

²⁴ WADA Code International Standard Testing and Investigations, 2021.

1.5.1. TARGET TESTING CAN BE CARRIED OUT.

22. It is humbly submitted that in accordance with the World Anti-Doping Code International Standard for Testing and Investigations, 2021, Target Testing is explicitly endorsed as a pivotal strategy for anti-doping endeavors.²⁵ Under *Article 4.5*,²⁶ priority testing is prescribed to optimize the allocation of testing resources. Significantly, the Code dispenses with the requirements of '*reasonable suspicion*' or '*probable cause requirement*', underscoring the proactive stance towards deterrence and detection of doping infractions.
23. *Article 4.5.2*²⁷ and *Article 4.5.3*²⁸ lay down the criteria for employing target testing by International Federations and Anti-Doping organizations. The former set of criteria has not been incorporated as a parameter for selection in the present AI to ensure an egalitarian approach. *Article 4.5.3* further lays down the factors relevant to determining which athletes shall be the subject of Target Testing, which the Anti-Doping Organization shall consider in addition to *Article 4.5.2*.
24. The factors enumerated under *Article 4.5.3* are not exhaustive, as evident from the phrase '*including but not limited to.*' These factors include performance patterns and high performance without a commensurate Test record. Consequently, Target Testing may be conducted based on indicators suggestive of substance misuse, encompassing disparities in bodily functions and facial morphology.
25. It is therefore submitted that target testing can be carried out based on factors indicative of drug abuse, including differences in bodily functions and facial features.

1.5.2. PROVISIONS FOR WEIGHTED RANDOM TESTING EXIST.

26. It is submitted that the alternative to Target Testing, as provided under the WADA Code, is the system of *Random Testing*.²⁹ The International Standards for Testing and Investigations underscore the prioritization of a weighted system of Random Selection, guided by meticulously defined criteria, which may encompass considerations delineated in *Article 4.5.3*.³⁰ This methodological approach ensures a nuanced selection process that diligently

²⁵ WADA Code International Standard Testing and Investigations, 2021.

²⁶ WADA Code International Standard Testing and Investigations, 2021, Article 4.5.

²⁷ WADA Code International Standard Testing and Investigations, 2021, Article 4.5.2.

²⁸ WADA Code International Standard Testing and Investigations, 2021, Article 4.5.3.

²⁹ WADA Code International Standard Testing and Investigations, 2021, Article 4.5.1.

³⁰ NADA Anti-Doping Rules, Article 4.5.4, 2015.

targets 'at-risk' athletes. Therefore, even if the athletes were not subject to target testing based on their individual features, the criteria that provide for selection based on higher performance levels than usual justify the system of selection as employed by the AI.

27. The NWB is acting in compliance with the WADA Standards as it has ensured that the database that is required to be maintained for the purpose of weighted random selection is in place. Through a sophisticated artificial intelligence (AI) system, athletes are objectively chosen based on physiological indicators indicative of substance abuse, thereby upholding the integrity of competition. This system is underpinned by a comprehensive database, crafted from curated medical data, delineating correlations between prohibited substances and their manifestations in facial features and bodily behaviours. An AI that randomly selects based on the criteria provided for and approved by the WADA cannot be held to violate the principles of equality.

1.6. THE SYSTEM COMPLIES WITH THE WORLD ANTI-DOPING AGENCY INTELLIGENCE GUIDELINES.

28. It is submitted that WADA requires that all Anti-Doping Organizations ensure they can obtain, assess and process anti-doping intelligence from all the available sources to strengthen the doping-control systems. The WADA has also provided Intelligence and Investigation Guidelines under the International Standards for Testing and Investigations. The information collected should be used to develop an effective, intelligent and proportionate Test Distribution Plan and to plan Target Testing.³¹ All the captured anti-doping intelligence is collated and analysed to establish patterns, trends, and relationships.³²

1.7. THE SELECTION SYSTEM COMPLIES WITH THE WORLD ANTI-DOPING AGENCY CODE AND ARTICLE 14.

29. The classification process administered by the National Federation is not only endorsed but also rigorously upheld by the World Anti-Doping Agency (WADA) Code, which stands as the pinnacle of international standards in anti-doping measures. Any insinuation of discriminatory athlete selection for testing would necessitate a critical examination of the WADA Code, as it could potentially infringe upon the fundamental principles of equality. Given that the National Anti-Doping Agency (NADA) operates within the framework delineated by WADA, it is inherently bound by the rigors of the International Standards. Consequently, National

³¹ WADA Code International Standard Testing and Investigations, 2021, Article 4.5.

³² WADA Code International Standard Testing and Investigations, 2021.

Federations, in their pursuit of adherence to NADA Rules, are unequivocally obligated to abide by the same set of guidelines, thereby ensuring uniformity and integrity in anti-doping practices.

30. *Article 14* of the Constitution guarantees equal protection of rights by the State.³³ The Apex Court in **Anwar Ali Sarkar** laid down the twin test or the intelligible differentia test to check the validity of a State Action.³⁴ The test was further refined with an extra layer of protection in the **State of Tamil Nadu v. South Indian River Interlinking**,³⁵ wherein it was stated that the objective of the action should be constitutional. The present classification, under scrutiny, unequivocally withstands the rigorous scrutiny of the Twin Test, affirming its constitutionally sound nature and its non-violative stance vis-à-vis *Article 14*.
31. Furthermore, the Anti-Doping mechanism qualifies for the **proportionality test** as laid down in **Modern Dental College**³⁶ and applied in **Puttaswamy**.³⁷ To satisfy the test of proportionality, (i) the state action must have a legitimate aim, (ii) the measure must be suitable for achieving the aim, (iii) the need for the same, (iv) there must be a balance between the extent of restriction and the importance of the goal (proportionality *stricto sensu*).³⁸ The AI is a nuanced version of an already existing Anti-Doping AI employed by WADA to ensure detection and deterring Doping among athletes. The need for AI lies in the increased Doping activities and the need for better, faster, and more efficient ways of detection. The NWB by introducing this more nuanced model ensures the least interference with the wrestlers' personal details and rights.
32. The AI is created to efficiently select athletes for testing based on parameters reflective of the criteria provided under the Code. The NWB, while employing such a system, is merely increasing the efficiency of the selection process already in place by introducing an AI. The selection process is one of the systems provided for by WADA. Therefore, it is the implementation of the Code. The legislative intent behind such target testing or weighted random selection is being furthered in the present case, and the AI does not constitute an arbitrary action on the part of the State. The AI aligns with the legislative intent, NADA provisions, and WADA standards and, therefore, cannot be considered an executive overreach.

³³ INDIA CONST. Art. 14.

³⁴ State of West Bengal v. Anwar Ali Sarkar, AIR 1952 SC 75.

³⁵ State of T.N. v. National South Indian River Interlinking Agriculturist Assn., (2021) 15 SCC 534.

³⁶ Modern Dental College and Research Centre v. State of M.P., 2013 SCC OnLine MP 1132.

³⁷ K.S. Puttaswamy and Anr. vs. Union of India, (2017) 10 SCC 1.

³⁸ Ibid.

33. This Court, in the *Puttaswamy Case*, has stated that apprehension, however legitimate it may be, cannot override the justification of a project in the larger public interest and which might have the potential of infringing rights once the justification test is satisfied.³⁹ An Anti-Doping Mechanism is in the greater interest of the ethical requirements of a sport. A mechanism that has been so introduced to ensure adequate care, caution, and monitoring at every stage protects the larger public interest. Hence, the contention of a few athletes that results produced by the project are ‘possibly’ leaning towards them, thereby infringing their rights yields.⁴⁰

1.8. THE ARTIFICIAL INTELLIGENCE IS NOT DESIGNED TO DISCRIMINATE.

34. The AI has been created using unaltered datasets sourced from comprehensive medical studies and research endeavours conducted by esteemed institutions. Throughout its development, the AI has been entrusted solely with original, untainted data, devoid of any human intervention or manipulation. Its function is singular: to impartially analyze this data and unveil correlations between physiological markers, facial characteristics, and patterns indicative of substance abuse. Therefore, it must be emphatically emphasized that the integrity of the data remains unblemished, with the AI serving as a meticulous interpreter, devoid of any biases or distortions.
35. The subsequent detection by the AI is based on the aforementioned corroborated data. The outcome yielded by the AI, which has been erroneously characterized as discriminatory, is in fact a direct consequence of the escalating prevalence of performance-enhancing drug utilization among athletes. The AI is not targeting athletes but the signs of administration of performance-enhancing drugs. Therefore, any insinuation of bias or arbitrariness directed towards AI is unfounded and lacks merit, as the conclusions drawn are firmly rooted in scientifically validated evidence.
36. The contention of Algorithm bias is completely irrelevant in the present scenario because a multitude of data was analysed and fed into the system before the final analysis. The AI was provided with data representing athletes of all communities. Moreover, the AI has been imbued with comprehensive theories and studies about the determinants of heightened drug usage within sports.⁴¹ This ensured that the AI did not unintentionally develop a bias against any

³⁹ K.S. Puttaswamy and Anr. vs. Union of India, (2017) 10 SCC 1.

⁴⁰ Ibid.

⁴¹ Ajzen I, Madden TJ, *Prediction of goal directed behaviour: Attitudes, intentions and perceived behavioural control*, J EXP SOC PSYCHOL. 1986, 22: 453-74. 10.1016/0022-1031(86)90045-4.

particular community. Importantly, the AI model has been specifically engineered to adhere to the principles of 'counterfactual fairness', a well-established concept in the literature, which empirically demonstrates its efficacy in mitigating biases within AI systems.⁴²

37. Therefore, National Wrestling Board, in utilizing an AI to detect doping among wrestlers, is not violating the principles of equality.

⁴² K.S. Puttaswamy and Anr. vs. Union of India, (2017) 10 SCC 1.

ISSUE 2.

THE FUNDAMENTAL RIGHTS HAVE NOT BEEN VIOLATED.

2.1. THE PUBLIC INTEREST LITIGATION FILED BEFORE THIS HON'BLE SUPREME COURT UNDER ARTICLE 32 IS NOT MAINTAINABLE.

38. It is humbly and most respectfully submitted that in accordance with *Article 32*⁴³ of the Constitution, a PIL can be filed in the Supreme Court for the enforcement of Fundamental Rights outlined in Part III⁴⁴ of the Constitution.⁴⁵ Therefore, if there is no action that infringes or poses a threat to Fundamental Rights, invoking jurisdiction under *Article 32* would be untenable.⁴⁶ Additionally, merely anticipating the deprivation of a fundamental right by the appellant is insufficient to trigger the Court's jurisdiction under *Article 32*.⁴⁷ However, in the present case, as the actions of the Respondents align with legal principles and do not constitute a violation of Fundamental Rights, there is no basis for such a claim.
39. In ***Shiv Shankar Sharma***,⁴⁸ the court emphasized the crucial significance of the bona fide intentions of the petitioner in Public Interest Litigation (PIL), stressing that the petitioner's credibility must be assessed at the outset. The court underscored that PILs should not be entertained based on mere allegations and incomplete information, especially when brought by individuals with questionable credentials or ulterior motives. The locus of the petitioner is deemed essential to ensure that PILs serve genuine public causes rather than being exploited for personal or political agendas. It is submitted that the PIL was filled by Mr Quankar based on mere allegations by critics who were disgruntled with this stringent scrutiny of doping activities.
40. It is also submitted that the precedent set by ***B. Singh (Dr.)***,⁴⁹ emphasizes that PILs should serve 'public interest' rather than 'publicity interest'. The PIL filed by Mr Quankar is primarily a publicity stunt aimed at promoting his candidacy for the head of NWB. NWB's actions have notably improved doping detectability rather than violating wrestlers' rights. Quankar's

⁴³ INDIA CONST. Art. 32.

⁴⁴ INDIA CONST. Part III.

⁴⁵ Gopal Das Moha v. Union of India, AIR 1955 SC 1; Andhra Industrial Works v. Chief Controller of Imports, (1974) 2 SCC 348 : AIR 1974 SC 1539.

⁴⁶ Federation of Bar Association in Karnataka v. Union of India, (2000) 6 SCC 715.

⁴⁷ Magan Bhai v. Union of India, (1970) 3 SCC 400.

⁴⁸ State of Jharkhand v. Shiv Shankar Sharma, 2022 SCC OnLine SC 1541.

⁴⁹ B. Singh (Dr.) v. Union of India, (2004) 3 SCC 363.

televised statement advocating for a Bolam community leader in NWB suggests personal ambition rather than genuine concern for community representation.

2.2. NATIONAL WRESTLING BOARD CANNOT BE A PARTY TO THE PROCEEDINGS.

41. It is humbly submitted before this Hon'ble court that NWB is an autonomous body, the administration of which is not controlled by any other authority, including the Union of India.
42. It is the submission that even though the field of wrestling may enjoy a pseudo-monopoly status, the same is not conferred on the Board by any statute or by any order of the government. It enjoys that status only by virtue of its first-mover advantage and its continuance as a solitary player in the field of wrestling control. It is also submitted that no law prohibits the coming into existence of any other parallel organisation.⁵⁰
43. It is humbly submitted Similarly, as has been held by this court in *Zee telefilms*,⁵¹ applying *Pradeep Kumar Biswas*,⁵² the board cannot be construed as a State for the purpose of *Article 12*,⁵³ and the said judgments being a judgment of Five and Seven Judge Bench of this Court, respectively, have to be taken into consideration and hence the Writ against the National Wrestling board would not be Maintainable.
44. In *arguendo*, should the bench determine that, for the purposes of this specific case, NWB ought to be interpreted as constituting a state within the meaning of *Article 12*, then it is humbly and most respectfully submitted that the Respondent categorically deny each and every claim by the petitioners. Furthermore, it is the unequivocal stance of the state that the claim the petitioners made is entirely frivolous and void of any merit whatsoever and a result of unfounded malice in the heart of the petitioner.

2.3. THE LIFETIME SUSPENSION OF THE ATHLETES DOES NOT VIOLATE THE DUE PROCESS AS GUARANTEED BY ARTICLE 21 OF THE CONSTITUTION.

45. It is humbly submitted that the contention of the petitioners that the ban on the three athletes violates due process⁵⁴ and inter alia *Article 21* of the Constitution is without merit and erroneous.

⁵⁰ *Zee Telefilms v. Union of India*, (2005) 4 SCC 649.

⁵¹ *Zee Telefilms v. Union of India*, (2005) 4 SCC 649.

⁵² *Pradeep Kumar Biswas vs. Indian Institute of Chemical Biology & Ors.*, 2002 5 SCC 111.

⁵³ INDIA CONST. Art. 12.

⁵⁴ *Maneka Gandhi v. Union of India*, AIR 1978 SC 597.

46. The National Anti-doping rules meticulously define violations as the presence of a prohibited substance or its metabolites in an athlete sample under *Rule 2.1*,⁵⁵ Use or attempted use under *Rule 2.2*,⁵⁶ Administration by an Athlete, In-competition or Out-of-Competition, of any Prohibited Substance or any Prohibited Method that is Prohibited under *Rule 2.8*.⁵⁷ Moreover, Complicity or Attempted Complicity by an Athlete, which includes Assisting, encouraging, aiding, abetting, conspiring, covering up, or any other type of intentional complicity or Attempted complicity involving an anti-doping rule violation under *Rule 2.9*.⁵⁸ The rules unequivocally stipulate that *Article 2.8 or 2.9* infringements warrant a potential *lifetime ban*.⁵⁹
47. Actoprotectors or synthetic adaptogens are compounds that enhance an organism's resilience to physical stress without increasing heat output. Actoprotectors are distinct from other doping compounds in that they increase *physical and psychological resilience* via non-exhaustive action. Actoprotectors such as bemethyl and bromantane have been used to prepare athletes and enhance performance in Olympic competitions and are banned by WADA under S6-Stimulants.⁶⁰
48. It is unequivocally established that the three athletes in question were apprehended on charges of using the prohibited substances.⁶¹ Furthermore, the athletes have confessed to have consumed '*Batavari Srahmi Ras*' for facilitating quick muscle recovery and fighting fatigue. In other words, 'performance enhancement.' Batavari has been tested by NADA to have Actoprotectors which fall under the prohibited list.
49. The incontrovertible evidence includes a collection of messages that were collected; among these messages, a subset reveals Mr. Quankar, the coach of the three athletes, expressing apparent prejudice against the Naku athletes and suggesting wrestlers, specifically from the Bolam community to visit a particular doctor who would provide them with 'additional help.'⁶²
50. It is contended that it has been established in **Pooran Mal** that no other extant legislation operates to bar the admissibility of relevant evidence solely on the grounds of its procurement

⁵⁵ NADA Anti-Doping Rules, Article 2.1, 2015.

⁵⁶ NADA Anti-Doping Rules, Article 2.2, 2015.

⁵⁷ NADA Anti-Doping Rules, Article 2.8, 2015.

⁵⁸ NADA Anti-Doping Rules, Article 2.9, 2015.

⁵⁹ World Anti- Doping Code, Article 10.3, 2021.

⁶⁰ The Prohibited List, WORLD ANTI DOPING AGENCY, S6, <https://www.wada-ama.org/en/prohibited-list> (last visited Jan 14, 2024).

⁶¹ Moot Proposition, page 3.

⁶² Moot Proposition, page 3.

through an illegal search or seizure.⁶³ The Respondents assert that invoking the alleged constitutional ethos for the exclusion of such evidence in the present circumstances would be legally unsound. *Article 21* is meant to safeguard the privacy rights of innocent citizens, not to protect the guilty, and the court should not interpret *Article 21* to prevent the investigation from acting against people seeking to violate the law.⁶⁴

51. It is contended that the paramount objective of a disciplinary proceeding is to ascertain the fitness for retention in service of the officer in question, rather than to adjudicate guilt or innocence.⁶⁵ Furthermore, it is long established that evidence collected in breach of the right to privacy alone does not make it inadmissible,⁶⁶ it is the pleadings of the Respondents that the same rationale must be applied in the present case.
52. It is pleaded by the Respondents that it is the court's primary duty to see that the relief sought for is not on grounds extraneous to the interest of justice and that the ultimate guiding principle must be the interest of the administration of justice.⁶⁷
53. Therefore, it is respectfully submitted that the contentions put forth by the petitioners regarding the alleged violation of due process and *Article 21* of the Constitution lack merit and should be dismissed.

2.4. NO RIGHT TO PRIVACY HAS BEEN VIOLATED.

54. It is humbly submitted that the contention of the petitioners to challenge the action of the NWB, citing a violation of the Right to Privacy as guaranteed by *Article 21* is misplaced.⁶⁸
55. As has been laid down by this court in ***Puttaswamy***,⁶⁹ the *Right to Privacy* is not absolute and can be restricted under certain circumstances. The action curtailing the fundamental right needs to pass the tests of (i) legality, (ii) need and (iii) proportionality.
56. To address the legality of the proposed measure, It is respectfully underscored that NADA has been expressly given the legal authority to collect, store, process and/or disclose personal

⁶³ Pooran Mal v. Director of Inspection, Income Tax, 1974 SCC (1) 345.

⁶⁴ R.M. Malkani v. State of Maharashtra, (1973) 1 SCC 471.

⁶⁵ Bhagwan Singh vs. Deputy Commissioner Sitapur, AIR 1962 All 232.

⁶⁶ Deepti Kapur v. Kunal Julka, 2020 SCC OnLine Del 672.

⁶⁷ Balwant Singh v. State of Bihar, 2007 SCC OnLine Pat 438.

⁶⁸ INDIA CONST. Art. 21.

⁶⁹ K.S. Puttaswamy and Anr. vs. Union of India ((2017) 10 SCC 1.

information relating to Athletes and other Persons where necessary and appropriate to conduct its Anti-Doping Activities under the Code.⁷⁰

57. Furthermore, In the current context, it is emphasised that Catcher Private Limited, an internationally recognised and accredited entity, is entrusted with the responsibility of implementing Artificial Intelligence technologies to identify and deter drug abusers and violators. Within the ambit of this authority, it is submitted that the Board possesses the discretionary power to engage the services of Catcher Private Limited, facilitating the creation of a *novel* software tailored to the specific needs of Nahira and capable of catering to the diverse demographics of the populace.
58. Addressing the question of ‘Need’, it is respectfully submitted that as of 2023, a joint report by WADA in consonance with the Athletes Integrity Unit has unequivocally identified Nahira as the *second worst-affected nation* by the scourge of doping.⁷¹ Despite the rigorous checks mandated by NADA and NWB, it is discerned that numerous unethical practices persist without detection by the existing regulatory bodies. Notably, certain performance-enhancing substances evade detection in conventional blood and urine samples,⁷² highlighting the limitations of the current testing methodologies.
59. In light of the same, it is posited that human fallibility may inadvertently contribute to oversights, and the observable inadequacies of the prevailing system underscore the need for a more robust and contemporary approach. The proposition advocates for the development and implementation of an Artificial Intelligence System, which relies on data accumulated over years of meticulous testing by the agency. This method is advanced as a more advanced and reliable means of detecting doping activities.
60. The final test, proportionality, has further been divided into four staged tests in ***Modern Dental College*** consisting of the legitimacy, suitability, necessity, and balancing stage.⁷³ It is underscored that the Respondents have argued and settled the first and the third stages at length in the earlier arguments.

⁷⁰ NADA Anti-Doping Rules, Article 14, 2015.

⁷¹ India second worst country in WADA’s 10-year global study of positive doping cases by minors - Sportstar, <https://sportstar.thehindu.com/other-sports/india-doping-cases-minors-second-worst-in-world-wada-study-10-years-russia-top-china-third-details/article67773968.ece> (last visited Jan 10, 2024).

⁷² How do elite athletes get away with doping? | Sheffield Hallam University, <https://www.shu.ac.uk/news/all-articles/features-and-comment/athlete-doping> (last visited Jan 10, 2024).

⁷³ Modern Dental College and Research Centre v. State of M.P., 2013 SCC OnLine MP 1132.

61. Regarding suitability, it is submitted that AR.I.E.T.T.A; i.e, Artificial Intelligence Evoking Target Testing in Antidoping,⁷⁴ has been adopted by WADA itself and while it acts as a generic and standardised tool, not taking into account the geographical and ethnic differences between its athletes, the AI as adopted by the NWB is indeed more evolved and takes into account all the Permutations and combinations of the diversity of the country.
62. For the balancing test, which ensures the right holder's rights haven't been disproportionately affected. The Respondents contend that the Petitioners' rights have not been affected at all.
63. It is submitted before this Hon'ble court that while it is acknowledged that the creation of the Artificial Intelligence system in question is attributed to Catcher Ltd, a point not disputed by either party, a critical distinction lies in the management of the AI. Following its development, the Artificial Intelligence system has been duly handed over to the NADA, which is the authority that conducts doping testing in the country. It is crucial to highlight that the administration and control of Artificial Intelligence, including the custody of its Metadata, lie squarely within the purview of NADA. Additionally, it is emphasised that all pertinent data and samples incorporated into the Artificial Intelligence have not been transmitted in any form to Catcher Pvt Ltd. The AI assists NADA in random testing and is not solely responsible for the same. The analysis of the facial and bodily functions of the wrestlers works as an additive to the already established practices adopted by the agency and not in substitution of the same.
64. The identity of the athletes was at no point compromised as the system encrypts the data regarding the behavioural functioning, assigning it in the process specified recognition code. This was done to ensure that the system complied with the NADA rules, which require that the Doping Control Information cannot be traced back to the athlete. Further, the code matches the sample test results after assigning them the same code. This ensures that the person's identity or ethnicity is not mentioned in the making of the AI. This eliminates the contention that AI operates based on stereotypes and reaffirms that it functions based on established data.
65. Therefore, the Respondents vehemently contend that the allegation of a violation of the *Right to Privacy*⁷⁵ is devoid of merit and lacks a substantive legal basis. The transfer of the Artificial Intelligence system to NADA, coupled with the exclusive control and possession of relevant

⁷⁴ AR.I.E.T.T.A. Artificial Intelligence Evoking Target Testing in Antidoping | World Anti Doping Agency, <https://www.wada-ama.org/en/resources/scientific-research/arietta-artificial-intelligence-evoking-target-testing-antidoping> (last visited Jan 10, 2024).

⁷⁵ INDIA CONST. Art. 21.

data by the regulatory body, emphasises the lawfulness of the system's administration, negating any plausible infringement on the petitioners' privacy rights.

2.5. THE TARGETING OF THE BOLAM COMMUNITY BY THE ARTIFICIAL INTELLIGENCE EMPLOYED BY THE NATIONAL WRESTLING BOARD DOES NOT VIOLATE THE PRINCIPLES OF EQUALITY.

66. It is the humble submission of the Respondents that the contention of the petitioners that the action of the board is arbitrary and against the ideals of **E.P.Royappa**⁷⁶ and hence violative of *Article 14*⁷⁷ is unfounded and lacks merit.
67. It is also contended that the assertion of the petitioners that the usage of artificial intelligence is a means to target the athletes of a particular community is particularly one without any merit. It is further contended that such allegations stem from personal bias or animosity against the administration rather than a substantiated legal argument.
68. The foremost authority in Artificial intelligence-based doping testing machinery has explained how the machine works very simply. *All of the data can be fed into the pre-trained Artificial Intelligence systems to check for signs of manipulation. Using machine learning methods and deep learning strategies, the system can consistently identify the typical patterns associated with doping in sports.*⁷⁸ It is humbly submitted that Artificial Intelligence neither operates autonomously nor makes independent decisions. The data has been incorporated into the system by the NWB in consultation with the NADA. The scrutiny undertaken by the AI is a direct outcome of the factual data presented and collected by the Authority, ensuring that the process is rooted in verifiable information obtained through the proper authorities.
69. In *arguendo*, should the contentions of the petitioners be entertained that, indeed, specific targeted testing is being conducted of the Bolam wrestlers, then it is imperative to underscore the fact that it is mandated and sanctioned according to the acceptable practices by WADA. Furthermore, it would be erroneous to consider the increased scrutiny in a vacuum, disregarding the determinative facts which have led to the same. It is pertinent to note that a news report surfaced highlighting an alarming increase in crime rates within the Bolam

⁷⁶ E.P. Royappa V State of Tamil Nadu, AIR 1974 SC 555.

⁷⁷ INDIA CONST. Art. 14.

⁷⁸ Saarland University, *How artificial intelligence can help in the fight against doping* | EUREKALERT, <https://www.eurekalert.org/news-releases/943116> (last visited Jan 10, 2024).

Community. The report emphasises a high conviction rate for crimes committed by the members of this community.⁷⁹

70. It is submitted before this court that the mere production of inequality is not enough to hold that equal protection has been denied as for every selection of persons for regulation produces inequality in some degree there needs to be an understanding as to why that inequality exists.⁸⁰
71. As has been established by **Anwar Ali Sarkar**,⁸¹ in order for any classification to pass the constitutional muster, it needs to
- Be founded on an intelligible differentia,
 - The differentia must have a rational relation to the object sought to be achieved.
72. In the present case, if a class were created, the creation of which is refuted by the Respondents, it would've been based on an intelligible differentia in furtherance of the objective of the classification.
73. It is an established principle that if the classification is broadly reasonable, the courts may not go into micro-classification in order to determine constitutionality⁸² and that the requirement of fairness implies that administrative authority must act in good faith,⁸³ without bias and apply its mind to all relevant considerations which has clearly been done by the NWB.⁸⁴
74. It is also established that Equal protection does not insist that classification should be scientifically perfect or logically complete,⁸⁵ which it is. The only necessity is that the classification not be palpably arbitrary.⁸⁶
75. The conclusion, if one were to draw any, is as straightforward as it seems, the data backs the assertion that the athletes of the Bolam community are indeed more prone or likely to consume drugs and the same is being observed and prevented by the Artificial Intelligence as well and hence, if they were subjected to increased scrutiny, which they weren't, it would only be to

⁷⁹ Moot Proposition, page 3.

⁸⁰ Chiranjit Lal v. Union of India, 1950 SCR 869.

⁸¹ State of West Bengal v. Anwar Ali Sarkar, AIR 1952 SC 75.

⁸² P.Nalla Thampy terah v. Union of India, 1985 Supp SCC 189.

⁸³ C.I.T. Bombay v. Mahindra, AIR 1984 SC 1182.

⁸⁴ Chingleput Bottlers v. Majestic Bottling Co, AIR 1984 SC 1030.

⁸⁵ Kedar Nath v. State of WB, 1954 SCR 30.

⁸⁶ In Re Special courts Bill, AIR 1979 SC 478.

further the objective behind the creation of drug testing and anti-doping stance. A more fair, clear and true sportsmanship in the country.

76. The assertion that the increased scrutiny is the result of Artificial Intelligence trickling down on the athletes based only on their facial and physical looks is also without merit.⁸⁷ It is reiterated that this entire writ is frivolous and is before this court only to forward the separatist agenda of the petitioner, who feels that he has been wronged but has nothing to back his claim.
77. It is therefore contended that the usage of Artificial Intelligence is in no way violating the principles of equality as enshrined in the constitution.

2.6. THE FUNDAMENTAL RIGHTS AS GUARANTEED UNDER 19(1)(g) HAS NOT BEEN VIOLATED.

78. It is most humbly submitted that it is a long-established principle of this court that no question of justifying a restriction under Cl.6 arises unless the petitioner succeeds in establishing that the right is, in fact, a fundamental right and that the impugned law has infringed some right as vested in the petitioner, distinguishing from being merely regulatory.⁸⁸ A law is not to be held to have imposed any restriction upon the right guaranteed by Article 19 if it merely regulates trade or business.⁸⁹
79. The state has the penultimate right to and duty to lay down the professional, technical and ethical qualifications necessary for carrying on any profession.⁹⁰ Qualification means that which makes a person fit to act. It relates to the fitness or capacity of a person for a particular profession. It should, therefore, be appropriate to refer by qualifications to the competence or the positive qualities required for a profession.⁹¹
80. Therefore, the petitioners' contention that this departmental regulation violates their 19(1)(g) is baseless.
81. In *arguendo*, the court is unconvinced with the arguments advanced, it is most humbly reiterated that no fundamental right exists in absolute measure, and certain reasonable

⁸⁷ Moot Proposition, page 3.

⁸⁸ Nagar Rice milling v. Teekappa, AIR 1971 SC 246.

⁸⁹ Nagar Rice milling v. Teekappa, AIR 1971 SC 246.

⁹⁰ Taracharan V. Das Gupta, AIR 1954 Cal 138.

⁹¹ Justice Fazal Karim, *Judicial Review of Public Action*, PAKISTAN LAW HOUSE, 2006, Vol 1, pp. 721-722.

restrictions have to be placed to ensure order and balance individual freedom and social good⁹² and the interest of the general public.⁹³

82. Even if the particular restriction curtails the right of individuals, in this case, the three wrestlers, the SC has reasoned that the reasonableness of a restriction is to be determined in an objective manner and from the standpoint of the interest of the general public and not from the standpoint of the interest of the person on whom the restriction is imposed.⁹⁴ The term “In the interest of the General Public” inter alia includes protection of morality.⁹⁵
83. The Respondents humbly contend that the imposed restriction, namely the lifetime suspension, is unequivocally asserted to be free from any semblance of vendetta or bias. It is administered with due process, founded on a legal framework, and substantiated by evidentiary support as per the deliberations of the Board. The board is entrusted with the responsibility for ensuring fairness in the game and improving the country's sports standards, following which the imposition of the stipulated consequences upon the wrestlers is a necessity dictated by prevailing statutes and emergent needs within the sporting domain of the country.
84. Therefore, the Respondent contends that the claim of the petitioners that their Article 19(1)(g) has been violated is one without merit as well.

⁹² JK Industries Ltd v. Chief Inspector of Factories, 1996 6 SCC 665.

⁹³ Ramchand v. Union of India, AIR 1963 SC 563.

⁹⁴ Krishnan Kakkanth v. Government of Kerala, 1996 SCC OnLine Ker 48

⁹⁵ Municipal Corpn. of the City of Ahmedabad v. Jan Mohd. Usmanbhai, (1986) 3 SCC 20

PRAYER

Wherefore, in the light of the Facts stated, Issues raised, Arguments advanced and Authorities cited, may this Hon'ble Supreme Court of Nahira be pleased to *Adjudge/Declare* THAT:

- I. The present Special Leave Petition is not maintainable and Catcher Pvt. Ltd. is not the 'right authority' to enforce fundamental rights,
- II. The Public Interest Litigation is not maintainable,
- III. National Wrestling Board has not transgressed its powers and has not violated the provisions of the Constitution and NADA Anti-Doping Rules,
- IV. The lifetime suspension of the three athletes is valid,
- V. Consumption of the traditional medicine 'Batavari Ras' by Bolam athletes is violative of the prohibited list,

AND/OR

PASS ANY OTHER ORDER IT MAY DEEM FIT, IN THE INTEREST OF JUSTICE, EQUITY AND GOOD CONSCIENCE.

All of which is most humbly and respectfully submitted.

Place: S/d_____ S/d_____

Date: **COUNSELS FOR THE PETITIONER**